LAW Capsule

Module 10 - Laws & Regulations related to Cyber Security & Data Privacy

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Before IT Act, 2000

After IT Act, 2000



About IT Act, 2000

Title - The Information Technology Act, 2000
Came into force on - 17th October 2000

Objectives of IT Act, 2000

- Provide legal recognition to
  - Electronic transactions
    - By recognising digital signatures
      - Whether used by
        - public
        - Government officials
        - For publication of rules
        - Gazette notifications
  - facilitate electronic filing of documents
  - Subsequent amendments to other acts
- to set up
  - Licensing
  - Monitoring

of Certifying authority

Central government – Ministry of Electronics & Information Technology (MeitY)

↓

Constituted the Controller of Certifying Authorities (CCA)

To

- Recognise
- License
- Supervise
- Regulate

The Certifying Authorities

↓

Shall issue digital signature certificate

Settlement of disputes under IT Act, 2000

Any person not satisfied with the order of

- Adjudicating Officer (Appointed by CG)
- Controller of Certifying Authority (constituted by CG)

can Appeal within 45 days of the order of AA/CCA to

Cyber Regulations Appellate Tribunal
(Now merged with TDSAT – Telecom Disputes Settlement and Appellate Tribunal)

↓

Any person not satisfied with the order of appellate tribunal can appeal to

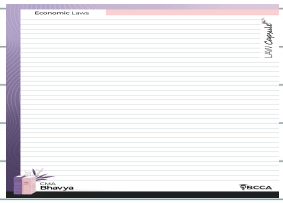
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High Court within 60 days of order of appellate tribunal

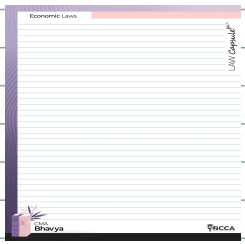
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Data protection laws

Meaning – Set of privacy laws, policies & procedures → that aim to → Minimise intrusion into one's privacy



Reason – Collection and storage of sensitive personal data



Meaning

Relates to a person who can be identified from the information or data

Examples

- Passwords,
- credit/debit card information
- biometric data
- DNA
- mental health condition

Data protection laws in India

No separate data protection law in India

Initially not present under IT Act, 2000

Later on added through

The Information Technology (Amendment) Act, 2008

Insertion of
- section 43A
- section 72A

Information Technology (Reasonable security practices and procedures and sensitive personal data or information) Rules, 2011

Right to privacy

Fundamental right

On August 24, 2017

by Supreme Court

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Section 43A

whenever a corporate body possesses any sensitive personal data

is negligent in maintaining a reasonable security

thereby causes wrongful loss or wrongful gain to any person

body corporate shall be liable to pay damages

Section 72A

Penalty for disclosure of information

In breach of lawful contract

Fine

₹25,00,000

Information Technology (Reasonable security practices and procedures and sensitive personal data or information) Rules, 2011

Applicable to body corporates and individuals in India

Body corporate that collect sensitive personal data

- Must have privacy policy
- Easily accessible on its website
- Must contain
  - What kind of personal information is being collected?
  - Why?
  - What security practices are taken to keep it safe?

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Cyber crimes

Meaning - Criminal activities where computers or networks are

Used as
- Tools
- Targets
- Places of criminal activities

Causes threat to
- governments
- businesses
- Individuals

Unique nature
- No geographical boundaries
- Anonymous perpetrators



Major categories of cyber crimes

Cyber crimes against persons
1. Cyber stalking
2. Obscenity
3. Defamation
4. Hacking
5. Cracking
6. Spoofing
7. Carding
8. Fraud
9. Threat

Cyber crimes against property
1. IPR violation
2. Squatting
3. Vandalism
4. Hacking
5. Virus
6. Trespass

Cyber crime against government
1. Terrorism
2. Warfare
3. Piracy
4. Unauthorised information

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Business Intelligence (BI)

Meaning — Technology driven process — that helps organisation

analyse data and provide actionable insights

for decision-making

Process of BI

Data collection & storage → Data preparation → Data analysis → Distribution → Decision making

Data collection & storage

Both

- Historical
- Real time data

is collected and stored

- Data warehouses
- Data marts

Data preparation

Raw data from different sources is

- consolidated
- cleansed

accurate information for analysis

Data analysis

Prepared data is analysed

using analytical querying

to extract insights

Distribution

Key performance indicators (KPIs) and other analytical findings

distributed to business users

Decision making

information gathered

used to influence and drive

strategic & tactical business decisions.

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Benefits of BI

- Speed up and improve decision-making
- Increase operational efficiency
- Identify emerging business and market trends
- Develop stronger business strategies
- Optimize internal business processes
- Spot business problems
- Drive higher sales and new revenues
- Gain a competitive edge

Types of BI

- Ad Hoc Analysis → temporary basis
- Mobile BI → BI apps on smartphones
- Operational Intelligence → delivers information to frontline workers
- Embedded BI → put directly into business applications
- Location Intelligence (LI) → analyze location and Geographic data
- Online Analytical Processing (OLAP) → multiple dimensions
- Real-time BI → analyzed as it's created
- Open Source BI (OSBI) → free of charge and subscription based
- Collaborative BI → combination of BI applications and collaboration tools

Key words

NOTES

